

Safeco Ins. Co. (1977) 74 Cal.App.3d 615, 619 [insurer alleged to have performed acts of intentional misrepresentation and fraud against the third party noninsured].) Hence, there is no benefit of a joint trial while there would be prejudice to moving Defendants in that determination of Chapman's liability may potentially influence the jury to conclude liability on the part of State Farm and Abebe. Further, as moving Defendants explain, the trial of fraudulent misrepresentation claims would require introduction of evidence of insurance whereas it would otherwise be inadmissible in the trial of the negligence claims against Chapman under Evidence Code section 1155, which provides that "[e]vidence that a person was ... insured ... against loss arising from liability is inadmissible to prove negligence or other wrong doing."

Plaintiffs' opposition provides no valid reason to deny the motion. They assert that damages they suffered from Abebe and State Farm's misrepresentation cannot be measured in isolation because the misrepresentation claims would require Chapman's testimony. However, the sole reason the separate claims would require testimonies from the same person does not mean that duplicative testimonies or evidence would be used in both trials. Further, Plaintiffs' claim that the damages they seek against Abebe and State Farm under the "tort of another doctrine" are measured directly by the extent and scope of the litigation against Chapman is without merit. Plaintiffs' Complaint does not include a count for tort of another nor allege any basis for such a claim.

Defendants Mary Abebe and State Farm Mutual Automobile Insurance Company's Motion to Sever GRANTED.

Defendants Mary Abebe and State Farm Mutual Automobile Insurance Company's Motion to Stay all Proceedings confirmed for 7.24.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	DEMURRER ON 1ST AMENDED COMPLAINT OF KENT PEARCE BY TIMOTHY ELLENZ, ANTHONY ELLENZ, CALIFORNIA WINDOW AND DOOR, INC.

Tentative Ruling:

No opposition filed.

Demurrer is SUSTAINED with leave to amend.

Plaintiff to file amended complaint within 20 days. The amended complaint shall address the deficiencies raised in Defendant's Demurrer to the First Amended Complaint, that the 1st-7th causes of action fail to state facts sufficient to constitute a cause of action.

Plaintiff may not amend the complaint to add a new cause of action without moving for leave to amend, unless the new cause of action is within the scope of the court's order. *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.

Plaintiff's Motion for Leave to Amend First Amended Complaint set for 7.28.26 is VACATED.

Case Management Conference is continued to 10.27.26.